

Sri M R Naveen Chandra vs Smt Pooja S Padmini on 13 September, 2023

Author: G.Narendar

Bench: G.Narendar

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NC: 2023:KHC:33878-DB
MFA No.2079 of 2022

IN THE HIGH COURT OF KARNATAKA AT BENGALURU
DATED THIS THE 13TH DAY OF SEPTEMBER, 2023
PRESENT

THE HON'BLE MR. JUSTICE G.NARENDAR

AND

THE HON'BLE MR. JUSTICE VIJAYKUMAR A. PATIL

MISCELLANEOUS FIRST APPEAL NO.2079 OF 2022 (FC)
BETWEEN:

1. SRI. M.R. NAVEEN CHANDRA
S/O V. RAMAKRISHNA
AGED ABOUT 46 YEARS
R/AT NO.2793, 9TH CROSS
V V MOHALLA, MYSURU-570 002.

...APPELLANT

Digitally
signed by
RUPA V
Location:
HIGH
COURT OF
KARNATAKA

(BY SRI. SRINIVASA D.C. ADV.,)

AND:

1. SMT. POOJA S. PADMINI
D/O H.V. SHESHACHALA
AGED ABOUT 29 YEARS
R/AT NO.620/567
2ND FLOOR, DR. RAJKUMAR ROAD
YARGANAHALLI NEW EXTENSION
MYSURU-570 011.

...RESPONDENT

(BY SRI. A.N. RADHA KRISHNA, ADV.,)

THIS MFA IS FILED U/S.19(1) OF FAMILY COURTS ACT,
AGAINST THE JUDGMENT AND DECREE DT.07.10.2021 PASSED
IN MC NO.876/2019 ON THE FILE OF THE PRL. JUDGE, FAMILY
COURT, MYSURU, DISMISSING THE PETITION FILED
U/S.13(1)(ia)(ib) OF THE HINDU MARRIAGE ACT.

THIS APPEAL, COMING ON FOR ORDERS, THIS DAY,
VIJAYKUMAR A. PATIL J., DELIVERED THE FOLLOWING:

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NC: 2023:KHC:33878-DB
MFA No.2079 of 2022

JUDGMENT

This appeal is filed under Section 19(1) of the Family Courts Act, 1984 against the judgment dated 07.10.2021 passed in M.C.No.876/2019 by the Principal Judge, Family Court, Mysuru, (hereinafter referred to as, 'the Family Court') by which the petition filed by the appellant -

husband under Section 13(1)(ia) & (ib) of the Hindu Marriage Act, 1955 seeking dissolution of marriage on the ground of cruelty was dismissed.

2. Learned counsel for the appellant and the learned counsel for the respondent submit that at the intervention of elders and well-wishers, the appellant-

husband and the respondent-wife, in the conciliation, have arrived at an amicable settlement of the dispute and accordingly they have filed a compromise petition under Order XXIII Rule 3 of Civil Procedure Code, 1908.

3. The terms of the compromise petition read as under:

NC: 2023:KHC:33878-DB "a. The appellant/husband has agreed to pay a sum of Rs.10,00,000/- (Rupees Ten Lakh Only) to the respondent/wife towards full and final settlement of the permanent alimony.

The respondent/wife accepted to receive Rs.10,00,000/- (Rupees Ten Lakh Only) towards her permanent alimony and it is final settlement amount, there will be no further claim by the respondent/wife against the appellant/husband in any manner whatsoever. The appellant and the respondent have no issues out of their marriage.

b. The appellant on 28.07.2023 paid a sum of Rs.3,00,000/- (Rupees Three Lakh Only) to the respondent/wife towards part payment through a D.D. No.510249 dated 26.07.2023 drawn on State Bank of India, Jayalakshmipuram, Mysuru, before this Hon'ble Court in RPFC No.105/2021 towards the first installment. The respondent/wife has acknowledged receipt of the same.

c. The appellant on 28.07.2023 issued a post dated cheque No.985219 dated 14.09.2023 for Rs.7,00,000/- (Rupees Seven Lakh Only), in the name of the respondent/wife. The NC: 2023:KHC:33878-DB respondent is instructed to present the cheque on its date for realization. The respondent has acknowledged receipt of the same in RPFC No.105/2021 towards the balance amount of permanent alimony.

d. The appellant/husband and the respondent/wife have undertaken to file necessary application/joint memo in the above case i.e., MFA No.2079/2022 pending before this Hon'ble Court for grant of Divorce unconditionally without any further demand of maintenance, in view of the settlement arrived in RPFC No.105/2021 the present compromise petition is filed by the parties.

e. The appellant/husband today paid a sum of Rs.7,00,000/- (Rupees Seven Lakh Only) by way of D.D.No.761537 dated 05.09.2023 in the name of the respondent/wife drawn on Karnataka Gramin Bank to the respondent/wife towards the full and final settlement of the maintenance amount. The respondent/wife has acknowledged the same.

f. The respondent/wife has returned the original cheque bearing No.985219 dated NC: 2023:KHC:33878-DB 14.09.2023 for Rs.7,00,000/- (Rupees Seven Lakh Only), issued in the name of the respondent/wife back to the appellant/husband in view of payment of Rs.7,00,000/- (Rupees Seven Lakh Only) to the respondent/wife through the above said demand draft.

g. The appellant and the respondent have no claim against each other in any manner whatsoever. The parties are at liberty to lead their independent life without any type of interference by and against each other. There is no claim of any other thing whatsoever against each other in any manner. Both the parties are at liberty to lead their independent life without interfering with each others life."

4. We have gone through the terms of the compromise petition, they are not opposed to public policy and nor opposed to law. The learned counsels for the parties respectively identify the appellant-husband and the respondent-wife, who are present before the Court. The parties to the proceedings express that they have entered NC: 2023:KHC:33878-DB the compromise on their own volition, they have understood the terms of the compromise and they have affixed their signature.

5. The compromise petition is placed on record.

6. The appeal is disposed of in terms of the compromise petition by dissolving the marriage solemnized between the appellant and respondent on 22.05.2016 at Raghavendra Choultry, Kanthraja Urs Road, Kuvempunagara, Mysuru.

Registry is directed to draw the decree accordingly.

No order as to costs.

Sd/-

JUDGE Sd/-

JUDGE BSR